

# **CV-23-007620 WRIGHT, ERIKA vs VALLEY INDUSTRIAL PARK LP – Defendant Valley Industrial Park LP’s Motion for Summary Adjudication – GRANTED.**

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: Cross-Complainant, as the moving party, has met the burden of demonstrating entitlement to adjudication of the issues presented herein in its favor. (Code Civ. Proc. § 437c(p)(2).) Based on the declaration of William Pinkley and the evidence presented thereby, Cross-Complainant has demonstrated that Cross-Defendant owes a contractual duty to defend and indemnify in connection with Plaintiff’s claims against Cross-Complainant herein. Specifically, the undisputed evidence establishes that the subject incident arose out of, involved, or occurred in connection with Cross-Defendant’s use and/or occupancy of the premises, as provided in the parties’ lease. (See, e.g., UMFs 2, 3, 6, 7, 11, 12, 15, 16, 22, 23, 26, 27, 35, 36, 39, 40.) The burden then shifts to Cross-Defendant to submit admissible evidence establishing the existence of material factual disputes preventing adjudication of the issues presented herein. The Court finds that Cross-Defendant has failed to meet that burden. In that regard, the Court notes that the essence of Cross-Defendant’s purported dispute concerns the legal significance of the evidence as it relates to the application of the subject indemnity clause in the lease. However, the Court finds that Cross-Defendant’s primary cited authority, Morlin Asset Management LP v. Murachanian (2016) 2 Cal.App.5th 184 is inapposite on these facts. In addition, while Cross-Defendant suggests the application of the exception for the lessor’s gross negligence or willful misconduct, the evidence presented on those issues consists primarily of speculation and is insufficient to create a material factual dispute on that claim. (See, e.g., Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 162–163.) Cross-Defendant’s objections to evidence are OVERRULED.

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